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CASE #	CASE NAME	HEARING NAME
CVPS2502805	DAVIS VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE, FROM DEFENDANT FORD MOTOR COMPANY; AND REQUEST FOR SANCTIONS

Tentative Ruling: A party may file a motion compelling further answers to requests for production if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. § 2031.310.)

For requests for production, a response must contain a statement of compliance, an inability to comply, or objection. (C.C.P. § 2031.210(a).) A statement of compliance shall state that the production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (C.C.P. § 2031.220.) A statement of inability to comply shall state that a diligent search and a reasonable inquiry has been made to comply, the reason for the inability to comply, and the name and address of any person/organization that may have the documents. (C.C.P. § 2031.230.) Specifically, a statement of inability to comply shall “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party,” and shall also “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Id.*)

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (C.C.P. § 2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. § 2017.010.)

To prevail on a claim under the Song-Beverly Act, Plaintiffs must prove a nonconformity with a vehicle that substantially impaired its use, value, or safety that Defendant or its authorized representatives failed to repair after a reasonable number of attempts. (*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094.) The Song-Beverly Act also provides a right of action to recover damages and other relief if the vehicle was sold with a known defect. (Civ. Code § 1794(a); *Mexia v. Rinker Boat Co., Inc.* (2009) 17 Cal.App.4th 1297, 1304-05 (implied warranty of merchantability).)

Under the Song-Beverly Act, a “manufacturer has an affirmative duty to replace a vehicle or to make restitution to the buyer if the manufacturer is unable to repair the new vehicle after a reasonable number of repair attempts.” (*Lukather v. General Motors, LLC* (2010) 181 Cal.App.4th 1041, 1050.) Willful failure to comply with that duty subjects a manufacturer to a civil penalty of up to twice the amount of actual damages. (Civ. Code § 1794(c).) Critical to the showing of “willfulness” is whether the manufacturer knew of the alleged defect, including not only through evidence that the vehicle was not repaired after a reasonable number of attempts, but also through internal investigations and warranty records showing that other consumers were similarly affected. (*Jensen v. BMW of N. Am., Inc.* (1995) 35 Cal.App.4th 112, 136 [in assessing whether a violation is willful, the jury is entitled to consider, among other things, whether “the manufacturer knew the vehicle had not been repaired within a reasonable period or after a reasonable number of attempts”]; *Oregel, supra*, 90 Cal.App.4th at 1104-1105 [evidence that defendant-manufacturer was aware of unsuccessful repair attempts can support civil penalty liability]; *Troensegaard v. Silvercrest Indus., Inc.* (1985) 175 Cal.App.3d 218, 226 [noting that defendant manufacturer’s possession of a report on the defective condition was sufficient to support civil penalty liability]; *Krotin v. Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 303 [noting an “automobile manufacturer need not read minds to determine which vehicles are defective; it need only read its dealers’ service records”].)

Request for Production Nos. 16-18:

Request for Production Nos. 16-18 sought each written warranty that Defendant provided for the Vehicle, all documents constituting Defendant’s warranty claims policies and procedures from 2023 to the present, and Defendant’s workshop manual for the Vehicle.

Defendant responded that it “will comply with this Request, in part, and produce all documents responsive to this Request that are located following a reasonable and diligent search and to which no objection is made.” Defendant then referred Plaintiff to the New Vehicle Limited Warranty Guide for the 2023 Ford Bronco vehicle, and produced the Warranty Policy and Procedure Manuals applicable to 2023 to the present subject to a protective order.

Request for Production Nos. 20-30:

Request for Production Nos. 20-30 sought documents describing Defendant’s policies, procedures, instructions, training materials, scripts, and flow charts for evaluating and responding to California consumer complaints about its vehicles and determining whether a vehicle is eligible for repurchase, including what constitutes a “repair presentation,” “non-conformity,” “substantial impairment,” “reasonable number of repair attempts,” and a time frame to respond to a vehicle repurchase request, from 2023 to the present.

Defendant objected on grounds of attorney-client and/or work product privilege. However, the party asserting the privilege must present facts supporting a prima facie claim of privilege; only then does the opposing party have the burden of showing that the privilege does not apply, an exception applies, or there was a waiver. (*Oxy Resources California, LLC v. Superior Court* (2004) 115 Cal.App.4th 874, 894.) Defendant provides no evidence that such a privilege applies—it merely speculates such in the opposing

memorandum. Here, the requested documents are relevant to show whether Defendant was in compliance with Song-Beverly.

Defendant contends that it produced Warranty Policy and Procedure Manuals from 2023 to the present, Customer Relationship Center (“CRC”) policies and procedures applicable to 2025, and the RAV Policy and Procedure Manual applicable to 2025. (Opp., p. 9.) However, Plaintiff contends that it sought documents from 2023 through the present, and asserts that Defendant’s recent document production does not contain the RAV Policy and Procedure Manual applicable to 2025. (Reply, p. 1.) In sur-reply, Defendant contends that it served the RAV Policy and Procedure Manual for 2023 on August 12, 2026, which Defendant asserts is the most recent manual available. (Perez, Jr. Decl. ¶ 4.) However, there is no evidence that Defendant has produced the CRC policies and procedures that were applicable from 2023 through 2025.

Request for Production Nos. 47 and 50-59:

Request for Production Nos. 47 and 50-59 seek documents reflecting Defendant’s preservation efforts and backup procedures for business data.

However, these requests do not seek substantive evidence bearing on Plaintiff’s Song-Beverly claims. Rather, they seek information about how Defendant conducted its own discovery. “Discovery into another party’s discovery process is disfavored.” (*Jensen v. BMW of N. Am., LLC* (S.D. Cal. 2019) 328 F.R.D. 557, 566.) Although *Jensen* is a federal authority, it is persuasive given the “similarity of California and federal discovery law.” (*Liberty Mut. Ins. Co. v. Sup. Ct.* (1992) 10 Cal.App.4th 1282, 1288.)

Under *Jensen*, meta-discovery may be appropriate where there is a legitimate question about the completeness of a party’s production. (*Jensen, supra*, 328 F.R.D. at 566 [“Generally, courts will only permit such discovery where there is some indication that a party’s discovery has been insufficient or deficient.”].) However, Plaintiff has not made that showing here.

Defendant states that it has already fully complied and substantively responded to Plaintiff’s first sets of voluminous RFPs and SROGs, producing all the responsive documents related to the Subject Vehicle and necessary to pursue a viable Song-Beverly claim. (Opp., pp. 4-5.) Plaintiff has identified no concrete evidence of destruction or withholding in this case.

Plaintiff’s basis for questioning production completeness is counsel’s observations, through their routine litigation against defense counsel on Song-Beverly actions, of Defendant’s “occasional production of inconsistent document sets across various cases.” (See Motion, p. 1.) However, this is insufficient. Disputes about the scope or adequacy of Defendant’s productions in other, unrelated lemon law cases filed by other plaintiffs are not relevant to whether Defendant’s production in this case is complete or adequate. With no showing of what was produced here, what was omitted, or wherein any discrepancy lies, Plaintiff has not satisfied the threshold *Jensen* requires to justify meta-discovery. Permitting it on this basis would allow discovery-on-discovery as a matter of course in every Song-Beverly case where the same firms are on opposite sides, a result *Jensen* expressly cautions against.

Plaintiff cites *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243 for the proposition that discovery into a party's document retention policies is appropriate to assess whether a reasonable search was conducted. (Motion, p. 7.) However, Plaintiff's reliance on *San Benito* is misplaced. That case arose in a Public Records Act enforcement proceeding where the reasonableness of the agency's document search was the central merits question. In that narrow context, the court upheld discovery into the County's retention policies because they could "inform [the plaintiff's] assessment of the reasonableness of the County's search." (*Id.* at 258.) Here, Plaintiff's Song-Beverly claims turn on whether the Subject Vehicle had warranted defects that substantially impaired its use, value, or safety, and whether Defendant failed to conform the vehicle to warranty after a reasonable number of repair attempts. The adequacy of Defendant's document search is not an element of any of those claims. Thus, *San Benito* is inapposite.

Sanctions:

Code of Civil Procedure sections 2030.300(d) and 2031.310(h) provide that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or a demand for production unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Here, the imposition of sanctions would be unjust due to the mixed results and because Plaintiff filed the motions to compel before signing the protective order that covered several of the documents at issue.

Motion to Compel Further Responses to Request for Production, Set One, as to Requests #16-18, 47, 50-59 DENIED.

Motion to Compel Further Responses to Request for Production, Set One, as to Requests #20-30 GRANTED.

Plaintiff to provide verified, code-compliant responses and responsive documents, without objection, within 30 days of the date of this Order.

Plaintiff's Request for Sanctions DENIED.

Trial Setting Conference confirmed for November 2, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502805	DAVIS VS FORD MOTOR COMPANY, A DELAWARE CORPORATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES FROM DEFENDANT FORD MOTOR COMPANY, AND REQUEST FOR SANCTIONS BY GLENN DAVIS

Tentative Ruling: Upon a timely motion to compel further responses to interrogatories, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and